CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

PARTIAL DECISION

AS TO THE ADMISSIBILITY OF

Application no. 27225/02
by İlhami ERSEVEN and Others
against Turkey

The European Court of Human Rights (Second Section), sitting on 13 June 2006 as a Chamber composed of:

Mr J.-P. COSTA, *President,*
Mr A.B. BAKA,
Mr I. CABRAL BARRETO,
Mr R. TÜRMEN,
Mr M. UGREKHELIDZE,
Mrs A. MULARONI,
Ms D. JOČIENĖ, *judges,*

and Mrs S. DOLLÉ, *Section Registrar*,

Having regard to the above application lodged on 22 April 2002,

Having deliberated, decides as follows:

THE FACTS

The applicants, Mr İlhami Erseven, Mr Hikmet Yıldırım, Mr Veli Ateş, Mr İsmail Öztorun, Mr Ellez Duman, Mr İsmail Kaya, Mr Kenan Atakul, Mr Süleyman Çetinkaya and Mr Bekir Arslan, are Turkish nationals. They are represented before the Court by Mr F. Gümüş, a lawyer practising in Ankara.

The facts of the case, as submitted by the applicants, may be summarised as follows.

The applicants were members of the executive and supervisory boards of the Pir Sultan Abdal Cultural Association ("the Association"), a non-governmental organisation with its headquarters in Ankara.

On 15 November 2000 officers from the Ankara governor's office carried out an inspection at the headquarters of the Association. They found that the members of the executive board had failed to establish a membership registration book and that the members of the supervisory board had failed to conduct a periodical inspection of the Association, in breach of Articles 62 and 29 of the Law on Associations (Law no. 2908).

On an unspecified date, the Ankara public prosecutor imposed a fine of 92,510,000[1] Turkish Liras (TRL) per person on the members of the executive and supervisory boards of the Association.

On 15 January 2001 a payment order was served on the members of the executive and supervisory boards who, however, did not pay the fine within the obligatory ten day limit.

Subsequently, on 17 April 2001 the Ankara public prosecutor filed a bill of indictment against the applicants, along with seventeen other persons who were also members of the executive and supervisory boards of the Association. The public prosecutor requested that the accused be sentenced to a fine, under Article 86 of the Law on Associations and Article 119 § 5 of the Criminal Code, for their failure to comply with Articles 29 and 62 of the same Law.

On 11 September 2001 the Ankara Magistrates' Court *(sulh ceza mahkemesi)* found the applicants and the other co-accused guilty as charged and, by issuing an order (*ceza kararnamesi*), sentenced them to an increased fine of TRL 136,890,000[2] per person.

On 8, 9, 12 and 22 October 2001, the applicants filed objections against the decision of 11 September 2001. In their petitions, the applicants maintained that they had been deprived of the opportunity to make defence submissions and that, therefore, they did not receive a fair trial.

On different dates in October 2001, the Ankara Criminal Court of First Instance *(asliye ceza mahkemesi)* dismissed the applicants' objections.

COMPLAINTS

The applicants complain that the Ankara Magistrates' Court's decision of 11 September 2001 constituted a violation of their rights under Articles 1, 3, 5, 7, 10, 11, 13, 14 and 17 of the Convention.

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[1]. Approximately 158 euros (EUR) at the time.

[2]. Approximately EUR 107 at the time; the fine was actually worth less by then because of high inflation.

The applicants further contend under Article 6 of the Convention that they did not receive a public hearing in the determination of the criminal charges against them and that they were deprived of the opportunity to submit their defence submissions in person.

THE LAW

1. The applicants complain under Article 6 of the Convention that they did not receive a public hearing in the determination of the criminal charges against them and that they were not allowed to defend themselves in person before the trial court.

The Court considers that it cannot, on the basis of the case file, determine the admissibility of this complaint and that it is therefore necessary, in accordance with Rule 54 § 2 (b) of the Rules of Court, to give notice of this part of the application to the respondent Government.

2. The applicants allege that the decision of 11 September 2001 violated their rights under Articles 1, 3, 5, 7, 10, 11, 13, 14 and 17 of the Convention.

The Court finds that these complaints do not disclose any appearance of a violation of the rights and freedoms set out in the Convention or its Protocols in the light of all the material in its possession, and in so far as the matters complained of are within its competence.

It follows that this part of the application should be rejected as being manifestly ill-founded, pursuant to Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court unanimously

Decides to adjourn the examination of the applicants' complaint under Article 6 of the Convention;

Declares the remainder of the application inadmissible.

S. DOLLÉ
Registrar

J.-P. COSTA
President